

Senate File 412

S-3148

1 Amend Senate File 412 as follows:

2 1. Page 1, after line 6 by inserting:

3 <Sec. _____. Section 562A.8, subsection 1, paragraph a, Code
4 2025, is amended by adding the following new subparagraph:

5 NEW SUBPARAGRAPH. (7) Posting on the primary entrance
6 door of the dwelling unit, with the date the notice was posted
7 included on the notice, and service by electronic mail provided
8 that all of the following are true:

9 (a) In a separate addendum to the rental agreement executed
10 by the tenant, the tenant has expressly consented to service of
11 notice using electronic mail for purposes of this chapter.

12 (b) The landlord has delivered the notice to the tenant
13 at the electronic mail address provided by the tenant in the
14 separate addendum described in subparagraph division (a).

15 (c) The tenant has not revoked, in writing, the consent for
16 service by electronic mail, with the burden of proving such
17 revocation being on the tenant.

18 Sec. _____. Section 562A.8, subsection 1, paragraph b, Code
19 2025, is amended by adding the following new subparagraph:

20 NEW SUBPARAGRAPH. (7) Service by electronic mail provided
21 that all of the following are true:

22 (a) In a separate addendum to the rental agreement executed
23 by the landlord, the landlord has expressly consented to
24 service of notice using electronic mail for purposes of this
25 chapter.

26 (b) The tenant has delivered the notice to the landlord at
27 the electronic mail address provided by the landlord in the
28 separate addendum described in subparagraph division (a).

29 (c) The landlord has not revoked, in writing, the consent
30 for service by electronic mail, with the burden of proving such
31 revocation being on the landlord.>

32 2. Page 1, by striking lines 9 through 14 and inserting:

33 <3. A provision in a rental agreement that is prohibited by
34 this section ~~included in a rental agreement~~ is unenforceable.

35 If a landlord willfully uses a rental agreement containing

1 ~~provisions known by the landlord to be prohibited enforces~~
2 a known prohibited provision, a tenant may recover actual
3 damages sustained by the tenant and not more than three months'
4 periodic rent and reasonable attorney fees.>

5 3. Page 1, after line 27 by inserting:
6 <Sec. _____. Section 562A.29A, subsection 1, Code 2025, is
7 amended by adding the following new paragraph:
8 NEW PARAGRAPH. d. Posting on the primary entrance door of
9 the dwelling unit with the date the notice was posted included
10 on the notice, and service by electronic mail provided that all
11 of the following are true:
12 (1) In a separate addendum to the rental agreement executed
13 by the tenant, the tenant has expressly consented to service of
14 notice using electronic mail for purposes of this section.
15 (2) The landlord has delivered the notice to the tenant
16 at the electronic mail address provided by the tenant in the
17 separate addendum described in subparagraph (1).
18 (3) The tenant has not revoked, in writing, the consent for
19 service by electronic mail, with the burden of proving such
20 revocation being on the tenant.
21 Sec. _____. Section 562B.9, subsection 1, paragraph a, Code
22 2025, is amended by adding the following new subparagraph:
23 NEW SUBPARAGRAPH. (7) Posting on the primary entrance
24 door of the dwelling unit, with the date the notice was posted
25 included on the notice, and service by electronic mail provided
26 that all of the following are true:
27 (a) In a separate addendum to the rental agreement executed
28 by the tenant, the tenant has expressly consented to service of
29 notice using electronic mail for purposes of this chapter.
30 (b) The landlord has delivered the notice to the tenant
31 at the electronic mail address provided by the tenant in the
32 separate addendum described in subparagraph division (a).
33 (c) The tenant has not revoked, in writing, the consent for
34 service by electronic mail, with the burden of proving such
35 revocation being on the tenant.

1 Sec. _____. Section 562B.9, subsection 1, paragraph b, Code
2 2025, is amended by adding the following new subparagraph:
3 NEW SUBPARAGRAPH. (7) Service by electronic mail provided
4 that all of the following are true:
5 (a) In a separate addendum to the rental agreement executed
6 by the landlord, the landlord has expressly consented to
7 service of notice using electronic mail for purposes of this
8 chapter.
9 (b) The tenant has delivered the notice to the landlord at
10 the electronic mail address provided by the landlord in the
11 separate addendum described in subparagraph division (a).
12 (c) The landlord has not revoked, in writing, the consent
13 for service by electronic mail, with the burden of proving such
14 revocation being on the landlord.>
15 4. Page 1, by striking lines 30 through 34 and inserting:
16 <3. A provision in a rental agreement that is prohibited by
17 this section included in a rental agreement is unenforceable.
18 If a landlord or tenant ~~knowingly uses a rental agreement~~
19 ~~containing provisions known to be prohibited by this chapter~~
20 willfully enforces a known prohibited provision, the other
21 party may recover actual damages sustained.>
22 5. Page 2, after line 21 by inserting:
23 <Sec. _____. Section 562B.27A, subsection 1, Code 2025, is
24 amended by adding the following new paragraph:
25 NEW PARAGRAPH. d. Posting on the primary entrance door of
26 the dwelling unit, with the date the notice was posted included
27 on the notice, and service by electronic mail provided that all
28 of the following are true:
29 (1) In a separate addendum to the rental agreement executed
30 by the tenant, the tenant has expressly consented to service of
31 notice using electronic mail for purposes of this section.
32 (2) The landlord has delivered the notice to the tenant
33 at the electronic mail address provided by the tenant in the
34 separate addendum described in subparagraph (1).
35 (3) The tenant has not revoked, in writing, the consent for

1 service by electronic mail, with the burden of proving such
2 revocation being on the tenant.>

3 6. Page 3, after line 6 by inserting:

4 <Sec. _____. Section 648.3, subsection 2, Code 2025, is
5 amended by adding the following new paragraph:

6 NEW PARAGRAPH. d. Posting on the primary entrance door of
7 the premises, with the date the notice was posted included on
8 the notice, and service by electronic mail provided that all of
9 the following are true:

10 (1) In a separate addendum to the rental agreement executed
11 by the tenant, the tenant has expressly consented to service
12 of notice using electronic mail for purposes of this section
13 and sections 648.4 and 648.5.

14 (2) The landlord has delivered the notice to the tenant
15 at the electronic mail address provided by the tenant in the
16 separate addendum identified in subparagraph (1).

17 (3) The tenant has not revoked, in writing, the consent for
18 service by electronic mail, with the burden of proving such
19 revocation being on the tenant.

20 Sec. _____. Section 648.5, subsection 1, paragraph a, Code
21 2025, is amended to read as follows:

22 a. An action for forcible entry and detainer shall be
23 brought in a county where all or part of the premises is
24 located. Such an action shall be tried as an equitable action.
25 Upon receipt of the petition, the court shall set a date, time,
26 and place for hearing. The court shall set the date of hearing
27 no later than eight days from the filing date, except that the
28 court shall set a later hearing date no later than fifteen days
29 from the date of filing if the plaintiff requests or consents
30 to the later date of hearing. Upon motion by any party,
31 proceedings, including any court-ordered pretrial mediation,
32 may be conducted by video conference with the parties and other
33 participants if the hearing is able to be conducted in an
34 efficient manner, does not prejudice a substantial right of any
35 party, and appropriate technology is available. A nonmoving

1 party may attend any such hearing in person without further
2 notice, motion, or leave of court.>

3 7. Page 3, line 24, by striking <Ninety> and inserting
4 <Sixty>

5 8. Page 4, after line 7 by inserting:

6 <Sec. _____. NEW SECTION. 648.24 Expungement — sealing of
7 court records.

8 Upon application of a defendant in an action for forcible
9 entry and detainer, the court shall enter an order sealing
10 the court records of the action under any of the following
11 circumstances:

12 1. *a.* The action was filed against the defendant for
13 nonpayment of rent and the defendant prevailed on the merits
14 of the case or the case was dismissed because the plaintiff
15 failed to appear. A defendant is deemed to have prevailed
16 on the merits of the case including but not limited to when
17 a court determines that the action for forcible entry and
18 detainer was filed by a plaintiff against a defendant who was
19 not in violation of the lease due to clerical error, mistaken
20 identity, or other demonstrable error of the plaintiff, or
21 was filed by the plaintiff in violation of section 562A.36 or
22 562B.32.

23 *b.* Expungement of all records by order of the court pursuant
24 to this subsection shall occur within three days of a properly
25 filed application by the defendant requesting expungement of
26 records of an action for nonpayment of rent where the defendant
27 had prevailed on the merits of the case or the case had been
28 dismissed because the plaintiff failed to appear.

29 *c.* This subsection does not apply if the action was
30 dismissed by the plaintiff for reasons other than a failure to
31 appear on the part of the plaintiff.

32 2. *a.* The defendant was found guilty in the action for
33 nonpayment of rent and less than seven years has passed,
34 and the defendant's application requesting expungement is
35 accompanied by the plaintiff's notarized written consent for

1 expungement of all records on the action and, in such consent,
2 the plaintiff attests that the defendant has made satisfactory
3 payment of unpaid rent and fees owed to the plaintiff under the
4 lease agreement and the defendant has made satisfactory payment
5 of all money judgments associated with the action.

6 *b.* A landlord shall not be obligated to consent to the
7 request of a tenant to expunge all records on the action under
8 this subsection.

9 *c.* A tenant may only request expungement of all records
10 on an action for forcible entry and detainer pursuant to this
11 subsection once in a seven-year period.

12 *d.* The supreme court shall prescribe a plaintiff consent
13 form that may be used for purposes of this subsection and
14 shall provide the form to the public on the judicial branch's
15 internet site.

16 3. Seven or more years have passed since the defendant was
17 found guilty in an action for forcible entry and detainer based
18 on the grounds of nonpayment of rent when due.>

19 9. By renumbering as necessary.

SCOTT WEBSTER